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Case Number: 25STCV32296 Hearing Date: August 7, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

JANE DOE,

Plaintiff,

vs.

MILES AT HARVARD,

LLC, et al.,

Defendants.

Case No.:

25STCV32296

Hearing Date:

August 7, 2026

Hearing Time:

2:00 p.m.

[TENTATIVE] ORDER RE:

DEFENDANT 502

HARVARD VENTURE LLC'S (DOE 1) DEMURRER TO PLAINTIFF'S COMPLAINT

DEFENDANT 502

HARVARD VENTURE LLC'S (DOE 1) MOTION TO STRIKE PLAINTIFF'S COMPLAINT

Background

On

November 5, 2025, Plaintiff Jane Doe ("Plaintiff") filed a complaint against Miles at Harvard, LLC, alleging six causes of action for (1) negligence, (2) premises liability, (3) breach of the implied warranty of habitability, (4) breach of contract, (5) negligent misrepresentation, and (6) intentional misrepresentation.

On

January 22, 2026, Plaintiff filed a Doe amendment, naming 502 Harvard Venture, LLC ("502 Harvard") as Doe 1.

502 Harvard now demurs to Plaintiff's complaint and moves to strike portions of the complaint. Plaintiff opposes. 502 Harvard replied.

Legal

Standard

"A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda, (2007) 147 Cal.App.4th 740, 747.) In testing the sufficiency of the complaint, the court assumes the truth of properly pleaded factual allegations, facts reasonably inferred from those expressly pleaded, and judicially noticed matters. ((Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed." (SKF Farms v. Superior Court, (1984) 153 Cal.App.3d 902, 905.) Accordingly,

“[w]hether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer.” (Stevens v. Superior Court (1986) 180 Cal.App.3d 605, 609-10.)

Under Code of Civil Procedure section 430.10 subdivisions (e) and (f), a demurrer may be filed if the pleading is uncertain or does not state facts sufficient to constitute a cause of action. For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment, otherwise, it is abuse of discretion. ((Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.)

Discussion

502

Harvard demurs to each cause of action of Plaintiff's complaint for failing to state facts sufficient to constitute a cause of action and for being uncertain.

A.

Allegations of the Complaint

Plaintiff

alleges the following: “On or about November 2, 2023, Plaintiff entered into a residential lease agreement with Defendants MILES AT HARVARD, LLC and DOES 1 through 10 for an apartment unit, number 604A, in Defendants' apartment complex located at or around 3920 W 5th Street, Los Angeles, CA 90020 (referred to herein as 'Lease'). The property, buildings, and apartment complex located at and around 3920 W 5th Street, Los Angeles, CA, are referred to herein as the 'PREMISES'.” (Compl., ¶ 9.) “As defined in the Lease, the leased space included a private bedroom and bathroom, collectively referred to in the Lease as 'Exclusive Use Space', in addition to 'Shared Use Space', consisting of hallways, common area doors, mailbox, washer and dryer, and kitchen. Per the terms of the Lease, the 'Shared Use Space' will be shared with the occupants ('Suitemates') of the other Suites(s) in the Residence.” (Compl., ¶ 12.) “Despite the shared living arrangements and requirement that Plaintiff share living space and regularly interact with strangers as a tenant of Defendants' PREMISES, Defendants MILES

AT HARVARD, LLC and DOES 1 through 10 never introduced Plaintiff to the tenants who she would be required to share living space with, or even provided her with their names so that she could confirm that every person who appeared to be staying at the PREMISES and was using the Shared Use Space was in fact, a tenant who was authorized to be there.” (Compl., ¶ 14.)

Plaintiff

further alleges, “per the terms of the Lease, residents were prohibited from sharing keys to the Premises, and if a resident does share the keys with others, the resident ‘shall be liable for the entire cost of all key and lock replacement necessary for the security of the Premises, building, and building occupants.’” (Compl., ¶ 16.) “Further, per the terms of the ‘Crime & Drug Free Lease Addendum’ to the Lease (referred to herein as ‘Addendum’), a tenant, member of tenant’s household, or guest of a tenant engaging in acts of violence, threats of violence, intimidation, or any other breach of the rental agreement ... shall be deemed a material violation of the lease and good cause for termination of the tenancy... Plaintiff relied upon these representations and terms of the Lease related to safety in deciding to enter into the Lease and move onto the PREMISES with her baby.” (Compl., ¶ 17.) “MILES AT HARVARD, LLC and DOES 1 through 10, inclusive, ignored and failed to enforce the Lease terms, Addendum, and rules, and chose not to address blatant repeated violations.” (Compl., ¶ 20.)

Plaintiff

alleges that “[o]n or about November 9, 2023, Plaintiff was in the shared kitchen cooking when a man, referred to herein as DOE 11, approached her and indicated that he stayed with his brother, referred to herein as DOE 12, in one of the apartment units that shared the kitchen and Shared Use Space with her unit. Unbeknownst to Plaintiff, DOE 11 was not, in fact, a tenant, and was staying in one of the units.” (Compl., ¶ 22.) “Upon Plaintiff meeting DOE 11, he immediately began expressing an interest in Plaintiff. Plaintiff informed him that she was not interested in him, but being under the impression that he was a tenant and that she would be having to share living space with him, she allowed him to come watch a movie in her unit because there was no living room. While in her unit, DOE 11 repeatedly made advances on Plaintiff and ignored her saying ‘no’, and ultimately sexually assaulted and raped Plaintiff. Thereafter, DOE 11 repeatedly accessed Plaintiff’s unit, violating her privacy and physical and personal space, and DOES 11 through 20 harassed, intimidated, and followed Plaintiff, causing her to fear for the health and safety of her and her baby. Plaintiff was afraid to report the assault, rape, intimidation, harassment, and

invasive conduct immediately due to fear of causing further problems with DOES 11 through 20, who she still had to share living space with.” (Compl., ¶ 23.)

“Plaintiff

thereafter learned that DOE 11 and others, ... were staying in the unit(s) that she was required to share living space with, in violation of the Lease terms and rules for the PREMISES. Plaintiff witnessed DOES 11 through 20 regularly accessing the PREMISES unaccompanied by a tenant, which was visible on the security cameras. Defendants MILES AT HARVARD, LLC and DOES 1 through 10, knew or reasonably should have known of these continued blatant violations of the terms of the lease and rules for the PREMISES, but failed to take any action to stop or address the ongoing problem.” (Compl., ¶ 24.)

B.

First and Second Causes of Action for
Negligence and Premises Liability

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Harvard asserts that “Plaintiff’s First Cause of Action for Negligence and Second Cause of Action for Premises Liability are pled on identical factual allegations and invoke the same duty of care. (Compl., ¶¶ 33-47.) Both claims arise from the same alleged failure to enforce the lease terms, control access by unauthorized non-tenants, and maintain safe premises. Because premises liability is merely a species of negligence, pleading both causes of action is duplicative, redundant, and uncertain.” (Dem., 4:8-12.)

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Harvard further contends that “[p]leading the same claim twice under two different labels serves no legitimate purpose. It only creates uncertainty for the parties and the Court, risks inconsistent jury instructions, and unnecessarily complicates discovery and trial.” (Dem., 4:27-5:1.)

As

Plaintiff points out in reply, 502 Harvard’s “sole argument is that premises liability and negligence are ‘duplicative,’” but “[t]hat argument is not a proper basis for demurrer.” (Opp., 3:11-12; see R.L. v. Merced City School Dist. (2025)

114 Cal.App.5th 89, 119 [“Redundancy[], is not enumerated as one of the statutory grounds on which a demurrer may be sustained.”].) The court in Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC (2008) 162 Cal.App.4th 858, 890

discussed duplicative and overlapping causes of action. There, the defendant asserted “that the court should sustain the demurrer because the third cause of action ‘mirrors [the] first cause of action for concealment and is duplicative.’” (Ibid.)

The Court of Appeal explained that “[t]his is not a ground on which a demurrer may be sustained. (See Code Civ. Proc., § 430.10.)

A quarter-century ago the code authorized a motion to strike ‘irrelevant and redundant’ matter from a pleading. (Former Code Civ. Proc., § 453, repealed 1982.) But the parallel provision now empowers the court only to ‘[s]trip out any irrelevant, false, or improper matter inserted in any pleading.’ (Code Civ. Proc., § 436, subd. (a).) The elimination of the reference to redundancy may have rested on the irreproachable rationale that it is a waste of time and judicial resources to entertain a motion challenging part of a pleading on the sole ground of repetitiveness. (See Civ.Code, § 3537 [‘Superfluity does not vitiate’].) This is the sort of defect that, if it justifies any judicial intervention at all, is ordinarily dealt with most economically at trial, or on a dispositive motion such as summary judgment.” (Ibid.)

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Harvard’s demurrer to the first and second causes of action as duplicate is improper. Accordingly, the Court overrules the demurrer as to the first and second causes of action.

C.

Third Cause of Action for Breach of the
Implied Warranty of Habitability

502

Harvard next asserts that “Plaintiff’s Third Cause of Action for Breach of the Implied Warranty of Habitability is legally untenable. Plaintiff attempts to fit the alleged presence of unauthorized non-tenants and Defendants’ purported failure to enforce guest-stay and occupancy provisions into the implied warranty of habitability. This theory falls well outside the statutory and common-law scope of the claim.” (Dem., 5:7-11.)

“[A]

warranty of habitability is implied by law in residential leases in this state... Under the implied warranty which we recognize, a residential landlord covenants that premises he leases for living quarters will be maintained in a habitable

state for the duration of the lease... In most cases substantial compliance with those applicable building and housing code standards which materially affect health and safety will suffice to meet the landlord's obligations." (Green v. Superior Court (1974) 10 Cal.3d 616, 637.) "A landlord's duty to provide security measures to protect tenants against crime because of his control of the areas of common use in an apartment complex can be a part of the implied warranty of habitability [citation] and certainly can become a part of the duty owed to tenants by express terms of a lease." ((Secretary of Housing & Urban Dev. v. Layfield (1978) 88 Cal.App.3d Supp. 28, 30.)

502

Harvard contends that "Plaintiff's allegations, that Defendants failed to prevent or remove unauthorized non-tenants and failed to enforce lease provisions regarding guest stays and additional occupants, do not involve any physical defect or dilapidation of the premises. These claims concern occupancy management and lease enforcement, not the physical condition of the dwelling. Such allegations fall outside the statutory definition of habitability and do not state a viable claim." (Dem., 5:23-27.) 502 Harvard further contends that "[b]ecause the Third Cause of Action is based on a theory that is legally insufficient under Civil Code sections 1941 and 1941.1, it fails to state facts sufficient to constitute a cause of action." (Dem., 6:6-7.)

Plaintiff's

opposition asserts that "Defendant is correct that Civil Code sections 1941 and 1941.1 focus on physical dilapidation of the dwelling. But Plaintiff's habitability theory is not limited to those two statutes, and the broader statutory scheme governing residential landlord obligations expressly reaches building security. Civil Code section 1941.3 requires residential landlords to install and maintain operable deadbolt locks on the main entry doors of dwelling units and operable locking mechanisms on windows and on exterior doors of buildings containing more than one dwelling unit that provide access to common areas, precisely the kind of access-control failure Plaintiff alleges here, where unauthorized non-tenants such as DOE 11 repeatedly and openly accessed the Shared Use Space that Plaintiff was contractually required to share. (Compl. ¶¶ 13, 19, 22-24, 28.) Likewise, Health and Safety Code section 17920.3 defines a 'substandard building' to include, among other things, unsafe conditions arising from inadequate or improperly located means of egress and other conditions endangering the safety of occupants, a broader universe of statutory habitability concerns than Defendant's brief acknowledges. At a

minimum, the allegations that Defendants knowingly permitted unauthorized, unvetted individuals to obtain and retain ongoing access to keys and to the Shared Use Space Plaintiff was required to share (Compl. ¶¶ 16, 22, 24, 28) state facts bearing on the security-related components of the statutory habitability scheme.” (Opp., 4:6-21.)

As

Plaintiff addresses, Civil Code section 1941.3 and Health and Safety Code section 17920.3, in part, pertain to safety in securing entrances and exits. Moreover, an implied warranty of habitability cause of action may lie where a tenant relies on a landlord's safety protocols when entering into a lease agreement. ((See Penner v. Falk (1984) 153 Cal.App.3d 858, 870 [the court sustained the demurrer to the implied warranty of habitability cause of action because “[a]ppellant here has not alleged that there existed a level of security of the premises which was relied upon by him in entering into the landlord-tenant relationship. Appellant has not alleged that respondents permitted or effected a reduction in that level of security which existed at the time he entered into the lease.”].)) Here, Plaintiff alleges that 502 Harvard included safety and security provisions within the lease agreement, which she reasonably relied on, but 502 Harvard provided “unsafe and uninhabitable conditions.” (Compl., ¶ 63.) Plaintiff alleges that 502 Harvard did not correct the problems, even though it “had actual and/or constructive knowledge of the unsafe and uninhabitable conditions, as described herein, prior to and through Plaintiff’s tenancy.” (Compl., ¶ 64.)

Based

on the foregoing, Plaintiff adequately pleads an implied warranty of habitability cause of action because, contrary to 502 Harvard's contention, the failure to secure and keep the common areas safe is sufficient to breach the implied warranty of habitability. Accordingly, the demurrer is overruled as to the third cause of action,

D.

Fourth Cause of Action for Breach of Contract

502

Harvard contends that “Plaintiff’s Fourth Cause of Action for Breach of Contract fails to state facts sufficient to constitute a cause of action against Defendant 502 Harvard Venture LLC. The Complaint simply assumes that this Defendant is a party to Plaintiff’s lease and is therefore bound by its

terms. It is not.” (Dem., 6:11-14.)

“The

standard elements of a claim for breach of contract are ‘(1) the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) damage to plaintiff therefrom. [Citation.]’” (Wall St. Network, Ltd. v. New York Times Co. (2008) 164 Cal.App.4th 1171, 1178.)

502

Harvard contends that “Plaintiff’s Fourth Cause of Action for Breach of Contract fails to state facts sufficient to constitute a cause of action against Defendant 502 Harvard Venture LLC. The Complaint simply assumes that this Defendant is a party to Plaintiff’s lease and is therefore bound by its terms. It is not.” (Dem., 6:11-14.)

Plaintiff

asserts that “Defendant’s privity argument overlooks the procedural posture of its own appearance in this case. Defendant 502 Harvard Venture, LLC was substituted into this action as DOE 1 on January 29, 2026.” (Opp., 5:2-4.) In the complaint, Plaintiff alleges she “entered into a residential lease agreement with Defendants MILES AT HARVARD, LLC and DOES 1 through 10,” and the premises “were owned, leased, possessed, occupied, controlled, inspected, maintained, operated, and/or managed by Defendants MILES AT HARVARD, LLC and DOES 1 through 10.” (Compl. ¶¶ 9-10 [emphasis added].)

Further,

Plaintiff asserts that “[b]ecause 502 Harvard Venture, LLC now stands in the shoes of DOE 1, the operative Complaint already alleges, and by virtue of the relation-back doctrine has alleged since the date of filing, that this Defendant was a party to, and landlord under, the Lease. Defendant’s contention that ‘[t]he Complaint simply assumes that this Defendant is a party to Plaintiff’s lease’ has it backwards: the Complaint does not assume privity, it expressly pleads it as to DOE 1, and Defendant was substituted into that role when the DOE Amendment was filed by Plaintiff.” (Opp., 5:12-17.)

The

Court agrees that 502 Harvard stands in the shoes of Doe 1 and, thus, the complaint pleads privity between Plaintiff and 502 Harvard.

502

Harvard also contends that “[e]ven assuming arguendo that privity existed, Plaintiff’s theory of breach would still fail. Plaintiff complains that Defendants breached the lease by failing to enforce provisions prohibiting additional occupants, limiting guest stays, and enforcing the Crime & Drug Free Lease Addendum against unauthorized third parties. These occupancy and guest-restriction clauses are covenants made for the landlord’s benefit only. A tenant generally cannot sue the landlord for breach of contract based on the landlord’s alleged failure to police or remove unauthorized persons or other occupants. Such provisions protect the landlord’s property interests and control over the premises, not the tenant’s right to enforce them against third parties.” (Dem., 6:22-7:1.)

Plaintiff

opposes 502 Harvard’s contentions, asserting that “Defendant’s fallback argument, that the occupancy and guest-restriction provisions of the Lease are covenants for the landlord’s sole benefit and not enforceable by a tenant, does not dispose of the Fourth Cause of Action even if correct, because Plaintiff’s contract theory is broader than the guest-restriction clauses alone. Plaintiff alleges Defendants breached the Lease’s incorporated statutory obligation, under Civil Code section 1941, to maintain the Premises in a condition fit for occupation (Compl. ¶ 74), an obligation that runs in the tenant’s favor and is a standard, tenant-enforceable term of every residential lease. Whether Defendant’s characterization of the guest-restriction clauses is correct or not, the breach-of-contract claim survives on the habitability-based breach theory alone.” (Opp., 5:18-25.)

502

Harvard’s assertion that Plaintiff’s cause of action for breach of contract cannot stand because the alleged portions of the contract 502 Harvard breached are to protect the landlord’s interests lacks merit. Regardless of whether this contention is true, when the Court rules on a demurrer, it only looks at the face of the pleadings and judicially noticed matters. Plaintiff did not attach the lease to the complaint. Accordingly, the Court cannot ascertain whether these provisions of the lease are solely for the landlord’s benefit. Plaintiff’s complaint pleads that there was a lease that Doe 1, 502 Harvard, was a party to (Compl., ¶ 72), the terms of the lease required Defendants to “provide safe and inhabitable housing in return for rent payments” (Compl., ¶ 74), and Plaintiff performed under the contract by, inter alia, paying rent (Compl., ¶ 76.) However, Plaintiff pleads that Defendants breached the lease by “failing to provide safe and adequate housing; substantially failing to provide PREMISES with basic

access control and security; failing to properly inspect, maintain, control and/or manage the Shared Use Spaces of the PREMISES to ensure that they were being used only by authorized people in compliance with the Lease terms and rules for the PREMISES; taking reasonable measures to ensure that unauthorized persons staying on the PREMISES did not pose a danger to tenants..." (Compl., ¶ 75.) Plaintiff pleads she was harmed due to the failure. (Compl., ¶ 23.) Accordingly, Plaintiff pleads the elements of breach of contract against 502 Harvard.

E.

Fifth and Sixth Causes of Action for Negligent and Intentional Misrepresentation

Lastly, 502 Harvard asserts that "Plaintiff's Fifth Cause of Action for Negligent Misrepresentation and Sixth Cause of Action for Intentional Misrepresentation fail to state facts sufficient to constitute causes of action. Plaintiff alleges only generalized, 'implicit and implied representations' that the premises were safe. (Compl., ¶¶ 80, 87.) She identifies no specific statement, no speaker, no time, no place, and no manner in which any representation was communicated. The two causes of action are pled in nearly identical language at the operative paragraphs." (Dem., 7:10-15.)

"To plead deceit based on intentional misrepresentation, plaintiffs were required to allege with particularity as many as seven essential factual elements..." ((Lauckhart v. El Macero Homeowners Assn. (2023) 92 Cal.App.5th 889, 903.) Like intentional misrepresentation, "negligent misrepresentation must be pleaded with particularity, with facts showing how, when, where, to whom, and by what means the representations were tendered." ((SI 59 LLC v. Variel Warner Ventures, LLC (2018) 29 Cal.App.5th 146, 155 [internal quotations omitted].) However, less specificity is required if it appears from the nature of allegations that the defendant must necessarily possess full information, or if the facts lie more in the knowledge of opposing parties.¿(Alfaro v. Community Housing Improvement System & Planning Assn., Inc.¿(2009) 171 Cal.App.4th 1356, 1384-1385.)

Plaintiff asserts that the specificity standard should be relaxed because "[o]nly Defendants possessed the security-camera footage, access logs, tenant screening records, and internal

knowledge of who was, and was not, an authorized occupant of the Shared Use Space Plaintiff was required to share. (Compl. ¶¶ 24, 28.) Plaintiff, by contrast, had no independent means of verifying who held keys to the Premises or which individuals using the common areas were authorized tenants.” (Opp., 6:12-16.) Plaintiff also asserts that “the representations at issue are not merely the generalized ‘implicit’ statements referenced in paragraphs 80 and 87 of the Complaint. The Complaint separately quotes specific, express written provisions of the Lease and the Crime & Drug Free Lease Addendum, the prohibition on additional occupants without the owner’s written consent, the deemed-occupant rule for guests staying more than three days, the key-sharing prohibition, and the material-breach provisions of the Addendum. (Compl. ¶¶ 15-17.) These are dated, written representations, made by Defendants to Plaintiff in the Lease itself at or before its execution on November 2, 2023, upon which Plaintiff alleges she relied in deciding to move into the Premises with her infant daughter.” (Opp., 6:18-25.)

Plaintiff’s complaint pleads that Defendants “made implicit and implied representations and promises to Plaintiff which were false, including but not limited to, representations that the PREMISES were safe and free from known dangerous hazards, such as unauthorized persons; that Defendants made a reasonable inspection of the PREMISES for unsafe conditions and took reasonable precautions to prevent injury due to the conditions that were or reasonably should have been discovered in the process, such as unauthorized persons living at the PREMISES and occupying and using the Shared Use Spaces; that Defendants controlled access to the PREMISES; that Defendants removed and/or evicted tenants and others who violated the terms of the Lease, Addendum, and/or rules of the PREMISES; and that the Shared Use Spaces were safe for a single woman and her daughter to utilize without fear of, or actual, harassment.” (Compl., ¶¶ 80, 87.) Plaintiff further alleges that “[t]he above-mentioned representations were not true and although Defendants may have honestly believed that the representations were true, Defendants had no reasonable grounds for believing the representations were true when they made them” (Compl., ¶ 81), “or that they made the representations recklessly and without regard for the truth.” (Compl., ¶ 88.) As Plaintiff noted in her opposition, her complaint also quotes the explicit representations that 502 Harvard made to her via the lease, such that residents were prohibited from sharing keys to the premises and that no additional person shall occupy the premises without the owner’s prior written consent. (Compl., ¶¶ 15-17.)

As Plaintiff contends, from the nature of the allegations, it appears that the facts lie more in the knowledge of 502 Harvard, because Plaintiff does not have, e.g, information regarding who accessed the property and how Defendants oversaw the premises' safety. Accordingly, Plaintiff's complaint pleads sufficient specificity under the Alfaro fraud pleading standard. The demurrer is overruled as to the fifth and sixth causes of action.

Motion
to Strike

A. Legal Standard

A court may "[s]trikeout any irrelevant, false, or improper matter inserted in any pleading" or "[s]trike out all or any part of any pleading "not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (CC Code Civ. Proc., § 436, subds. (a)-(b)CC.) "The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (CC Code Civ. Proc., § 437CC.)

"Where the defect raised by a motion to strike or by demurrer is reasonably capable of cure, leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question. [Citations.] A pleading may be stricken only upon terms the court deems proper [citation], that is, terms that are just. [Citations.] It is generally an abuse of discretion to deny leave to amend, because the drastic step of denial of the opportunity to correct the curable defect effectively terminates the pleader's action." (Velez v. Smith (2006) 142 Cal.App.4th 1154, 1174-1175 [internal quotations omitted].)

B. Discussion

502 Harvard moves to strike "[p]aragraph 70, in its entirety, which improperly refers to 'Defendants VIJENDRA and PRANEETA SINGH,' who are not named as parties anywhere in the Complaint," as well as "[a]ll allegations seeking punitive damages in the" second, third, fifth, and sixth causes of action. (Notice of Mot., 2:1-10.)

As for paragraph

70, Plaintiff states that “Defendant correctly observes that paragraph 70 contains a reference to ‘Defendants VIJENDRA and PRANEETA SINGH,’ individuals who are not named in the caption, the parties section, or the prayer for relief of the Complaint. Plaintiff does not oppose striking this isolated reference, or will voluntarily amend to remove it, and takes no position adverse to Defendant on this narrow point.” (Opp., 5:13-17.) Accordingly, the Court grants the motion to strike paragraph 70.

As for punitive

damages, 502 Harvard contends that Plaintiff’s allegations fall short of the specificity standard and do not allege facts showing authorization, ratification, or advance knowledge by an officer, director, or managing agent.

Punitive damages may be recovered upon a proper showing of malice, fraud, or oppression. (Civ. Code, § 3294, subd. (a).)

A motion to strike may lie where the facts alleged do not rise to the level of “malice, oppression or fraud” required to support a punitive damages award. (Turman v. Turning Point of Central California, Inc. (2010) 191 Cal.App.4th 53, 63-64.)

“‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code, § 3294, subd. (c)(1).) “‘Oppression’ means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Civ. Code, § 3294, subd. (c)(2).) “‘Fraud’ means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Civ. Code, § 3294, subd. (c)(3).)

Conclusory

allegations, devoid of any factual assertions, are insufficient to support a conclusion that parties acted with oppression, fraud, or malice. (Smith v. Superior Court (1992) 10 Cal.App.4th 1033, 1042.) To justify punitive damages on this basis, a “plaintiff must establish that the defendant was aware of the probable dangerous consequences of [their] conduct, and that [they] willfully and deliberately failed to avoid those consequences.” (Id., at pp. 895-896.) California law follows a heightened pleading standard for

punitive damages—vague and conclusory allegations are insufficient. ((G.D. Searle & Co. v. Superior Court (1975) 49 Cal.App.3d 22, 29.) The

trial court shall strike an allegation of punitive damages on motion unless the plaintiff pleaded ultimate supporting facts. ((Clauson

v. Superior Court (1998) 67

Cal.App.4th 1253, 1255.)

Civil Code section 3294, subdivision (b) states that “[a]n employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” “‘Managing agents’ are employees who ‘exercise[] substantial discretionary authority over decisions that ultimately determine corporate policy.’ . . . ‘[T]o demonstrate that an employee is a true managing agent under [Civil Code] section 3294, subdivision (b), a plaintiff seeking punitive damages would have to show that the employee exercised substantial discretionary authority over significant aspects of a corporation’s business.’” (Davis v. Kiewit Pacific Co. (2013) 220 Cal.App.4th 358, 366 [emphasis in original].)

As for specificity,

the Court already stated in the fraud section of the demurrer that where the facts appear to lie with the opposing party, less specificity is allowed. (See Alfaro v. Community Housing Improvement System & Planning Assn., Inc., supra, 171 Cal.App.4th at pp. 1384-1385.) However, regarding a corporate employer, 502 Harvard contends that “conclusory references to management or generic titles are insufficient” and, “[h]ere, Plaintiff has failed to meet this standard. The Complaint contains only generalized, conclusory references to ‘management personnel’ without identifying any officer, director, or managing agent, and without alleging any facts showing that such a person had advance knowledge of any employee’s unfitness or authorized or ratified the alleged wrongful conduct. Plaintiff does not allege what any specific individual in a policy-making role knew, when they knew it, or what actions (if any) they took to authorize or ratify the conduct at issue. There are no facts pleaded showing that any officer, director, or managing agent exercised

substantial discretionary authority over corporate policy or personally ratified the alleged failures.” (Mot., 4:25-5:4.)

Plaintiff's

opposition asserts that she “acknowledges this is a genuine pleading requirement, and that some courts have required a plaintiff to do more than refer generically to ‘management’ at the pleading stage. At the same time, which individual employee or agent received the LAPD report, reviewed the security-camera footage documenting the unauthorized occupants, and made the decision not to remove them, are facts that lie within Defendants' own personnel and management records, not Plaintiff's. Where the identity of the responsible corporate decisionmaker is peculiarly within the defendant's own knowledge, that is a circumstance courts have recognized as warranting some latitude at the pleading stage before discovery. In addition, where a plaintiff alleges that a wrong was committed willfully or with a design to injure, a prayer for exemplary damages may be supported without the same level of evidentiary detail otherwise required.” (Opp., 4:23-5:4.)

Plaintiff's complaint

does not allege acts made by the officers, directors, or managing agents of 502 Harvard. Without this, Plaintiff has not adequately pled punitive damages for a corporate defendant. Accordingly, the motion to strike punitive damages is granted, with leave to amend.

Conclusion

Based

on the foregoing, 502 Harvard's demurrer to the complaint is **OVERRULED** in its entirety. 502 Harvard's motion to strike is **GRANTED** in its entirety, with leave to amend.

Plaintiff is ordered to file and serve an amended complaint, if any, within 20 days of the date of this Order. If no amended complaint is filed within 20 days, the Court orders 502 Harvard to file and serve its answer to the complaint within 30 days of the date of this Order.

502

Harvard is ordered to provide notice of this Order.

DATED: August 7, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court